

25STCV19227 25STCV19227

County: los-angeles

Division: Civil Law and Motion

Department: 733

Hearing date: 2026-09-01

Motion: DEFENDANT AND CROSS-COMPLAINANT KELSEY K. IINO'S MOTION TO COMPEL THE DEPOSITION OF PLAINTIFF AND CROSS-DEFENDANT MARCUS LAM, WITH PRODUCTION OF DOCUMENTS

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Case Number: 25STCV19227 Hearing Date: September 1, 2026 Dept: 733

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES

MARCUS

LAM, an individual,

Plaintiff,

vs.

KELSEY K. IINO, an individual; and DOES 1 through 50,
inclusive,

Defendants.

AND RELATED CROSS-ACTION AND CONSOLIDATED ACTION.

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CASE

NO.: 25STCV19227

[TENTATIVE] ORDER RE: DEFENDANT

AND CROSS-COMPLAINANT KELSEY K. IINO'S MOTION TO COMPEL THE DEPOSITION OF
PLAINTIFF AND CROSS-DEFENDANT MARCUS LAM, WITH PRODUCTION OF DOCUMENTS

Dept. 733

8:30 a.m.

September 1, 2026

I.

INTRODUCTION

On July 1, 2025,

Plaintiff Marcus. J. Lam ("Plaintiff" or "Lam") filed a complaint against
Defendant Kelsey K. Iino ("Defendant" or "Iino"), alleging causes of action for
(1) Undue Influence, (2) Unjust Enrichment, (3) Fraud, (4) Negligent
Misrepresentation, (5) Accounting, and (6) Quiet Title.

The complaint

alleges the following. Plaintiff and Defendant were in a romantic, monogamous
relationship for twelve (12) years. (Compl., ¶ 1.) In October 2017,
Plaintiff and Defendant purchased real property located at 1155 S. Grand Ave.,

Unit 613, Los Angeles, California 90015, for \$1,375,000 ("Subject Property"). (Id. ¶ 2.) Plaintiff and Defendant both contributed \$250,000 toward a down payment to purchase the Subject Property and obtained a loan in the amount of \$875,000 as co-borrowers. (Id. ¶ 3.) On October 5, 2017, a Grant Deed was recorded in the Los Angeles County Recorder's Office as Instrument No. 20171142994, conveying the Subject Property to Plaintiff and Defendant as joint tenants. (Id. ¶ 4.) On October 5, 2017, a Deed of Trust was recorded in the Los Angeles County's Recorder's Office as Instrument No. 20171142995, securing the \$875,000 loan. (Id. ¶ 5.)

In September 2021, Plaintiff and Defendant decided to refinance the Subject Property to obtain a lower interest rate. Because of Defendant's credit score and debt, Plaintiff refinanced the Subject Property and obtained a loan in the amount of \$821,000 in his name only. (Id. ¶ 5.) Both parties lived in the Subject Property beginning in October 2017 and agreed to share the costs of living expenses—namely, the principal and interest on the home loan, property taxes, home insurance, and the HOA fees. Defendant paid \$2,500 per month, and Plaintiff paid \$4,000 per month. (Id. ¶ 8.)

However, from mid-2022 through August 2023, Plaintiff made the mortgage payments without any contribution from Defendant, paying \$6,500 per month in expenses. (Id. ¶ 9.)

In September 2023, after 12 years, Plaintiff was unfaithful to the relationship and committed infidelity. (Id. ¶ 10.) On September 18, 2023, Plaintiff attempted to make amends for his infidelity and offered to give Defendant his interest in the Subject Property. However, Plaintiff immediately reconsidered and told Defendant that he did not want to convey his interest. Defendant told Plaintiff that he could not retract his offer because he "already said it." Plaintiff felt pressured to commit to transferring his interest in the Subject Property to Defendant. (Id. ¶ 12.) Also on September 18, 2023, because of immense guilt and pressure, Plaintiff agreed to waive reimbursement from Defendant for the expenses paid on Defendant's during the period from mid-2022 through August 2023. (Id. ¶ 13.)

Defendant immediately drafted an agreement for Defendant's signature on the same day. The

agreement states that “Marcus Lam agrees that all equity in the [Subject Property] belongs to Kelsey lino.” The agreement also states that Defendant would agree to pay 50% of the mortgage, including property taxes, and insurance, and half of the HOA fees “for a period up to 365 days from 9/18/2023.” (Id. ¶ 14.) On October 30, 2023, Plaintiff signed a Grant Deed conveying his interest in the Subject Property to Defendant. (Id. ¶ 17.)

In May 2025, Plaintiff expressed to Defendant that he did not want to convey his interest in the Subject Property, and that he had felt pressured to do so. Defendant responded by way of her attorneys and claimed that Plaintiff no longer had an interest in the Subject Property. (Id. ¶ 18.) Plaintiff remains as the sole borrower on the mortgage for the Subject Property. (Id. ¶ 19.)

On July 3, 2025, Defendant lino filed a cross-complaint against Plaintiff Lam, alleging causes of action for (1) Fraud, (2) False Promise, (3) Quiet Title, (4) Breach of Written Contract, (5) Specific Performance, and (6) Declaratory Relief.

On July 16, 2026, lino filed the instant motion to compel the deposition of Lam, along with a production of documents.

On August 20, 2026, Lam filed an opposition.

On August 21, 2026, lino filed a reply.

II.

LEGAL STANDARD

Any party may obtain discovery, subject to restrictions, by taking the oral deposition of any person, including any party to the action. (Code Civ. Proc., § 2025.010.) A properly served deposition notice is effective to require a party or party-affiliated deponent to attend and to testify, as well as to produce documents for inspection and copying. (Code Civ. Proc., § 2025.280, subd. (a).)

California Code

of Civil Procedure section 2025.450, subdivision (a) provides: “If, after service of a deposition notice, a party to the action . . . , without having served a valid objection under Section 2025.410, fails to appear for examination, or to proceed with it, or to produce for inspection any document . . . described in the deposition notice, the party giving the notice may move for an order compelling the deponent’s attendance and testimony, and the production for inspection of any document . . . described in the deposition notice.”

California Code

of Civil Procedure section 2025.450, subdivision (b) provides: “A motion under subdivision (a) shall comply with both of the following:

The motion

shall set forth specific facts showing good cause justifying the production for inspection of any document, electronically stored information, or tangible thing described in the deposition notice.

The motion

shall be accompanied by a meet and confer declaration under Section 2016.040, or, when the deponent fails to attend the deposition and produce the documents, electronically stored information, or things described in the deposition notice, by a declaration stating that the petitioner has contacted the deponent to inquire about the nonappearance.”

California Rules of Court also require motions to compel “the production of documents . . . at a deposition . . .,” to be accompanied by a separate statement. (Cal. Rules of Court, rule 3.1345(a)(5).) “A separate statement is filed and served with the discovery motion that provides all the information necessary to understand each discovery request and all the responses to it that are at issue.” (Cal. Rules of Court, rule 3.1345(c).)

III.

DISCUSSION

Iino seeks to

compel Lam’s deposition and for the production of 33 categories of documents pursuant to the Notice of served on June 24, 2026.

On June 24, 2026,

lino's counsel served a notice of taking the deposition of Lam on July 14, 2026, and included a demand for production of documents. (Forry Decl., ¶ 6.) The Notice also requests for the production of documents regarding the communications and agreements between the parties, allegations of medical consultation and/or examinations of Lam, allegations of mental anguish and emotional weakness of Lam, Lam's damages for reimbursement of payments allegedly made by him to lino, pertinent allegations in Lam's Complaint, and the affirmative defenses in Lam's Answer to lino's Cross-Complaint. (Id. ¶ 7.)

After lino's

counsel followed up on July 9, 2026, Lam's counsel states that July 14, 2026, does not work for them and they can do late August. lino's counsel informed Lam's counsel of potential alternative dates in August. (Id. ¶ 8.) On July 10, 2026, Lam served an official Objection to the Notice, but failed to provide alternative dates. (Id. ¶ 10.) The Objection also objected to the requests for documents, in that the requests are "overbroad, unduly burdensome, seek information protected by the attorney-client privilege or attorney work product doctrine, seek irrelevant information, are not described with reasonable particularity, or otherwise exceed the permissible scope of discovery." (Id. ¶ 10, Ex. C.)

During the ex

parte application hearing on July 16, 2026, lino's counsel requested that Lam's counsel provide a date for his deposition and she refused to provide a date certain for Lam's deposition. (Id. ¶ 12.)

In opposition, Lam

asserts that the instant motion is moot because Lam has already submitted to his deposition on August 12, 2026, to which lino does not dispute. (Abebe Decl., ¶ 8.) However, lino contends that Lam did not produce all the documents responsive to the demand for production included in the Motion, specifically with respect to Demand No. 4. lino also asserts that the imposition of sanctions also remains at issue.

As for Demand No.

4, lino requested "All DOCUMENTS CONCERNING YOUR response to Form Interrogatory 6.1, and 6.2, served by YOU on February 17, 2026, that "Responding Party was mentally anguished and emotionally weak." As stated above, Lam only provided

objections.

First, good cause

exists to compel the documents requested in this demand because it pertains directly to allegations made by Lam connected to this dispute, which would, if shown, would support his claims.

Also, objections

must be specific, “boilerplate” objections and “nuisance objections” are inappropriate and even sanctionable. (*Korea Data Systems Co., Ltd. v. Superior Court*, (1997) 51 Cal.App.4th 1513, 1516; *Standon Co., Inc. v. Superior Court*, (1990) 225 Cal.App.3d 898, 902-903.) Lam also bears the burden of justifying its objections in response to a motion to compel, which he has failed to do. (*Fairmont Ins. Co. v. Superior Court*, (2000) 22 Cal.4th 245, 255.) Lam provides that “he did not have additional documents in his possession or control that were not already in Defendant counsel's possession” and “he was attempting to obtain documents responsive to demand no. 4 and would produce them to counsel.” (See Abebe Decl., ¶¶ 8-0.) Such representations should have been made in the formal Objection made to the Notice in a Code-compliant manner. (See Code Civ. Proc., § 2031.230.)

However, Lam's

counsel represents that “[a]ll parties agreed that Mr. Lam would produce any additional documents [to demand No. 4] once he obtained them and would submit to a second session of his deposition, if necessary.” (Abebe Decl., ¶ 9.)

To the extent that

there are documents responsive to lino's Demand No. 4, Lam must produce such documents or risk having them be precluded at trial.

Sanctions

lino requests \$4,454.76
in sanctions against Lam.

California Code of

Civil Procedure section 2025.450, subdivision (c) provides, “(1) If a motion under subdivision (a) is granted, the court shall impose a monetary sanction . . . in favor of the party who noticed the deposition and against the deponent or the party with whom the deponent is affiliated, unless the court finds that the

one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.”

The

Court does not find sanctions appropriate, as the Court finds that neither party participated in the discovery process in good faith.

IV.

CONCLUSION

Thus, lino's

motion to compel the deposition of Lam is DENIED as moot. lino's accompanying request for production of documents is GRANTED as to Category No. 4. Lam is

is to serve verified code compliant responses to

Category No. 4 without objection –

except attorney client privilege/work product and privacy – within thirty (30) days of notice of this order.

lino's accompanying request for sanctions is
DENIED.

Dated this 1st
day of September 2026

Hon. Gary
D. Roberts

Judge
of the Superior Court